

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J		PAGE 1 OF 11 PAGES	
2. AMENDMENT/MODIFICATION NUMBER 0001		3. EFFECTIVE DATE 01 Apr 2026		4. REQUISITION/PURCHASE REQUISITION NUMBER See Continuation Sheet		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY CODE NAVSUP FLT LOG CTR YOKOSUKA PSC 473 BOX 11, FPO AP 96349-1500 FPO, AP 96349-1500 UNITED STATES Takayo Shiba, Email: takayo.shiba.ln@us.navy.mil Telephone: 0468168403		7. ADMINISTERED BY (If other than Item 6) CODE SCD: PAS:					
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)			
				9A. AMENDMENT OF SOLICITATION NUMBER N6264926RA045			
				9B. DATED (SEE ITEM 11) 25 Mar 2026			
				10A. MODIFICATION OF CONTRACT/ORDER NUMBER			
				10B. DATED (SEE ITEM 13)			
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:
 (a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted;
 or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)
 See Section G - Contract Administration Data

**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)
 The purpose of this solicitation amendment 0001 is to incorporate the following change.
 To amend the text by removing "hard copy or" from Section C-3.1.
 All other information remains unchanged.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) Miwa Takahashi	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA <i>Miwa Takahashi</i> (Signature of Contracting Officer)	16C. DATE SIGNED 01 Apr 2026
(Signature of person authorized to sign)			

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Section C - Description/Specifications/Statement of Work

Miscellaneous text in this section has been modified to:

C-1.0 General Requirements: The Contractor, under the direction of the U.S. Naval Ship Repair Facility and Japan Regional Maintenance Center (SRF-JRMC) as an independent Contractor and not as an agent of the Government, shall furnish the material, support (electrical, crane, rigging, etc.) and facilities (except those furnished by the Government under express provisions of this contract) and provide the management, technical, procurement, production, testing and quality assurance necessary to prepare and accomplish the repairs and maintenance required to complete the USS HOWARD (DDG 83) FY26 6A1Non-Skid Work in accordance with the requirements stated in this Section, the Work Item Specifications / Task Group Instructions (TGIs) and Work Item Plans, Drawings, and Other References, the Delivery Schedule, and all other terms and conditions set forth in this contract.

C-1.1 Technical Description and Specifications: The work to be performed hereunder shall conform to the description of work /work specification described in Section B. The Contractor shall accomplish the contract requirements listed in Attachment (I) of Section J. Actual physical shipboard work shall begin and end in accordance with the dates listed in Section F of this solicitation.

C-1.2 Applicable Reference Documents: The Contractor shall accomplish all work in accordance with applicable NAVSEA Standard Items (NSIs) and SRF-JRMC Local Standard Items (LSIs). SRF-JRMC will determine which NSIs and LSI versions are applicable for all Chief of Naval Operations (CNO) availabilities to include Selected Repair Availability (SRA), Docking SRA (DSRA), and Extended DSRA (EDSRA); Continuous Maintenance Availability (CMAV); Emergent Maintenance (EM); and Surface Incremental Availability (SIA) scheduled for each ship. The same version continues to apply until the completion of each availability and maintenance regardless of whether the work crosses fiscal years.

CATEGORY-I items are invoked for all work resulting from this solicitation under the Master Agreement for Agreement for Repair and Alteration of Vessels; Master Ship Repair Agreement (MSRA) or Agreement for Boat Repair (ABR). CATEGORY-II items are invoked only to the extent specifically indicated within Attachment (I). Ship repair contractors are also subject to the applicable laws and regulations of the Host Nation.

Category I NAVSEA Fiscal Year 2026 (FY26) CH1 Standard Items are applicable to all items without further reference. Category II NAVSEA FY26 CH1 Standard Items are applicable when invoked and/or referenced in individual Task Group Instruction (TGI) specified in Attachment (I). NSIs may be found at:

<https://www.navsea.navy.mil/Home/RMC/CNRM/Our-Programs/SSRAC/>

Category I U.S. Naval Ship Repair Facility and Japan Regional Maintenance Center (SRF-JRMC) FY26 Local Standard Items (LSI), FY26 SRF- JRMC LSI is applicable to all items without further reference. Category II SRF-JRMC FY26 LSI is applicable when invoked and/or referenced in individual TGIs specified in Attachment (I). FY26 LSIs and subsequent Changes have been distributed to all MSRA/ABR holders. Please refer to Section A of this Solicitation when requesting copy of these references.

C-1.3 Government Furnished Material: The contractor is to coordinate the delivery and/or pick-up of all Government Furnished Material (GFM) as cited in work specification(s), supporting drawings, references and/or Statement of Work (SOW). The Contractor is required to manage all GFM upon receipt which includes monitoring, inspecting, segregating, determining nonconformance, and returning unused or nonconforming material to the Government for final disposition.

C-1.4 Contractor Furnished Material: The Contractor shall accomplish planning and scheduling to ensure a rational, integrated and timely plan for procurement, receipt, storage and installation of Contractor Furnished Material (CFM). All materials must meet the specified standard military performance specifications, Federal performance standards, and may require to be listed on a Qualified Products List (QPL) for shipboard installations.

C-1.5 Integrated Production Schedule: The Contractor is required to submit a production schedule encompassing, to the maximum extent possible, all contractor work requirements to the Government at the following milestones:

- (1) Work Package Execution Review;
- (2) Start of the Availability;
- (3) 25% complete conference;

- (4) 50% complete conference;
- (5) 75% complete conference;
- (6) Production Completion Date (PCD);
- (7) Work Completion;
- (8) Pre-Sea Trials requirements.

C-2.0 Availability Preparation and Meeting Participation: The Contractor, under the direction of SRF-JRMC shall complete the following efforts after contract award in preparation to execute the ship's availability. The Contractor shall include meetings attendance as part of their fully-burdened ship repair labor rates.

- (a) The contractor shall attend and support the Integrated Project Team Development (IPTD) Work Package Integration Conference (WPIC) as needed prior to the scheduled availability. The contractor shall support the conference by evaluating the Availability Work Package and pinpointing work requirements or issues that conflict, prevent or impact other work items from being accomplished.
- (b) The contractor shall conduct final ship-checks and coordination with assigned Zone Managers (ZMs) and Work Integration Managers (WIMs) who will liaison with the project team.
- (c) The contractor shall attend and support the IPTD Work Package Execution Review (WPER) and Schedule Model Review (SMR) events as needed prior to availability. The contractor shall support the mandated conference executed during planning period leading up to execution of an availability to review work, schedule, and ensure material and resource availability.
- (d) The contractor shall support the early start period of availability at the time of award. Contractor is required to begin work and therefore needs time to coordinate and stage materials and equipment prior to starting the physical work.
- (e) The contractor is required to order all long lead time structural materials some of which has long duration for fabrication and shipping from United States manufacturers.
- (f) The contractor is required to ensure the schedule is submitted to the project team in order to integrate with existing project schedule and mitigate risks due to space/location constraints to avoid work stoppages.

C-3.0 Identification of Condition Found: In accordance with the requirements of NSI 009-01, the Contractor shall identify needed repairs and recommend corrective action during contract performance for work/deficiencies discovered which are not covered by the existing work package. For conditions that impact the critical path(s) /controlling item(s), the Contractor shall notify the Government via electronic media within 24-hours of discovery. This initial notification need not include all content required for a Condition Found Report (CFR), but must include a description of the condition/deficiency and an estimated timeframe for the offeror's professional recommendation for resolution, which shall not exceed five (5) working days as specified below. Recommended repairs and corrective actions shall be submitted to the Government in the form of a CFR (intended to represent the "Work Request" described in DFARS 252.217-7028 "Over and Above Work").

C-3.1 Condition Found Notification to Government: Submit CFRs within five (5) working days via approved electronic media to SRF-JRMC after discovery of the condition. At a minimum, the CFR must include the following:

- (1) Identify contract, ship, and hull number
- (2) Identification of the applicable Work Item number
- (3) Date requirement was discovered
- (4) Description of the work requirement
- (5) Specific location of the work
- (6) Recommendation for corrective action
- (7) Recommendation for the appropriate/best time to accomplish the work (i.e. during current availability with or without schedule change, future CNO or Continuous Maintenance Availability). Provide supporting rationale for the recommendation, such as cost efficiencies, availability of work force, availability of material, premium expenditures, etc.
- (8) Identification of related changes, if any, to the internal milestones and production and contract completion dates.

C-3.2 Government Review and Response to CFR: The Maintenance Team will review the CFR. If the CFR is inadequate or incomplete, it will be rejected with time continuing to accrue (relative to five (5) working day requirement). As appropriate, the

Government and contractor shall meet and discuss the recommendation for corrective action further, conducting ship checks as necessary, to determine the full scope of work required prior to final approval of the CFR. Accuracy of CFR submissions may be evaluated in CPARS and utilized for past performance ratings on future requirements.

C-4.0 Descoping of Requirements: The Government reserves the right to descope any requirement under this contract at any time and for any reason. Descopes are incorporated into the contract via Deficiency List (DLs) and can either be a partial deletion of paragraph(s) from the work specification or deletion of a work item in its entirety. The Government will rely on the fully burdened labor rates entered in basic award for negotiating and settling descope DLs. At no time may the Contractor amend its pricing for full or partial work deletion.

C-4.1 Descope DLs: The Contractor agrees to price descope DLs at the same labor rate proposed in the original award. Partial or full work item deletion from the original work item or TGI will be processed via the usual contract modification process.

C-4.2 Minimum Technically Required (MTR) repairs deletion: MTR refers to the anticipated repairs that could not be clearly defined at the start of availability but were included in the TGI (based upon historical analysis published by Commander Navy Regional Maintenance Center and NAVSEA Contracting) to enable the Contractor to proceed with the work efficiently, if necessary. In certain instances where the ship's condition were found satisfactory after a thorough inspection, these MTR repair are cancelled and descoped before the end of the availability. As a result of the deletion of work, the Contractor is expected to return the awarded costs in full. The Contractor must be able to demonstrate production cost and provide justification of work incurred to the Administrative Contracting Officer if the proposing cost is different from the awarded amounts. Program management, idle time not worked and other indirect costs will not be considered.

C-5.0 DELAYS / DISRUPTIONS: The Contractor shall coordinate the work effort with SRF-JRMC Project Manager on a daily basis to prevent changing situations from causing delays and disruptions. Disruption due to minor delays in obtaining access to spaces and operation of equipment are to be expected. A minor delay is defined as eight clock (8) hours or less in duration (and is not the cumulative effect of labor hour impact). Minor delays and/or disruptions are considered normal rather than unusual occurrences during the performance of tasks ordered under the resulting contract. The Government will not provide any schedule relief for minor delays /disruptions.

C-6.0 NON-NAVY OWNED CRANES:

Sections 11.1 and 11.2 of NAVSUPFLCYINST 4200.9 series are invoked for the incidental use of non- Navy owned cranes at Navy shore installations.

NAVSUP FLCY STANDARD CONTRACT TEXT "NON-NAVY OWNED CRANES"

CONTRACTOR AND OTHER NON-NAVY OWNED WEIGHT HANDLING EQUIPMENT

11.1 Contractor Operated Cranes (and Multi-Purpose Machines, Materials Handling Equipment (MHE) and Construction Equipment When Used as Cranes to Lift Suspended Loads) and Rigging Equipment. Non-Navy-owned cranes, multi-purpose machines, MHE and construction equipment are frequently used on Navy property to lift suspended loads. Rigging equipment may be used with these machines or by itself in contractor weight handling operations. These cranes and equipment can be from a variety of sources and are generally incidental to construction contracts, ship repair contracts, demolition contracts, maintenance and other service contracts and deliveries of supplies and equipment. Numerous organizations, including tenant activities, ships, supply departments and Facilities engineering and Acquisition Division/Resident Office in Charge of Construction (FEAD/ROICCs) have contracting authority and often the need for cranes is not anticipated when contract documents are written. The following requirements apply to any contracted work utilizing non-Navy-owned cranes (and multi-purpose machines, MHE and construction equipment used to lift loads suspended by rigging gear) and to all rigging equipment used in weight handling operations at a naval activity. These requirements do not apply to shipboard cranes or rigging equipment. These requirements also do not apply to: commercial truck mounted and articulating boom cranes used solely to deliver material and supplies where the lift consists of moving materials and supplies (not prefabricated components, structural steel or components of a systems-engineered metal building) from a truck or trailer to the ground; to cranes installed on mechanic's trucks that are utilized solely in the repair of shore-based equipment; to cranes that enter the activity but are not used for lifting; nor other machines not used to lift loads suspended by rigging equipment. The Public Works Office (PRY33) is responsible for the oversight of all contractor cranes on bases within Commander, Fleet Activities Yokosuka in accordance with COMFEACTINST 11262.1B series. However, any Weight Handling Equipment (WHE) or crane accidents shall be reported in accordance with paragraphs 11.1.h and 11.1.i:

a. The contractor is required to comply with specific activity regulations pertaining to crane safety and operation (including allowable access routes and ground loading limitations) and to notify the PRY33 office, in advance, of any cranes entering the activity or of any multi-purpose machines, MHE or construction equipment that may be used in a crane-like application to lift suspended loads. For contractor-owned cranes, machines and rigging equipment at naval activities in foreign countries, the contractor-owned cranes, machines and rigging equipment shall comply with the appropriate host nation safety standards. For floating cranes and barge-mounted mobile cranes, require a third party certification from an Occupational Safety and Health Administration (OSHA) accredited

organization (or a third party certification from a state accredited organization for those states with OSHA approved state plans), a load indicating device, a wind speed indicating device and a marine type list and trim indicator readable in one-half degree increments. Third party certification is not required for floating cranes and barge-mounted mobile cranes at Navy activities in foreign countries.

b. For cranes (or other machines used to lift suspended loads) and rigging equipment at naval activities in foreign countries, the contractor shall certify that the crane (or other machine) and the rigging equipment conform to the appropriate host nation safety standards. The contractor shall also certify that all of its crane (or other machine) safety devices are enabled and functioning properly, that all personnel working on the naval activity job site have been trained to not stand under or in the fall zone of a suspended load unless specifically allowed by USACE EM 385-1-1, and that operators have been trained to not bypass safety devices (e.g., anti-two block devices, Load Moment Indicator's) during lifting operations. The contractor-owned crane certifications is required to be available on the crane or in the contractor's on-site office for rigging operations.

c. The contractor-owned mobile cranes, commercial truck mounted cranes and articulating boom cranes with Original Equipment Manufacturer (OEM) rated capacities of greater than 2000 pounds, require that the crane operator be designated as qualified by a source that qualifies crane operators (i.e., a union, a government agency or an organization that tests and qualifies crane operators). Proof of current qualification shall be provided to PRY33. Operators of cranes used in construction at activities under US jurisdiction shall follow the qualification and certification requirements of 29 CFR 1926.1427. For Navy activities in foreign countries, follow host nation requirements as applicable in lieu of the CFR.

d. The contractor is required to certify (appendix P, figure P-1) that the crane operator is qualified and trained for the operation of the crane or machine to be used.

e. For multi-purpose machines, MHE and construction equipment used to lift loads suspended by rigging equipment, the contractor is required to provide proof of authorization from the machine OEM that the machine is capable of making lifts of loads suspended by rigging equipment. Written approval from a qualified registered professional engineer, after a safety analysis is performed, is allowed in lieu of the OEM's approval. The contractor is required to demonstrate that the equipment is properly configured to make such lifts and is equipped with a load chart.

Note: MHE attachments covered by and used in accordance with NAVSEA SW023-AH- WHM-010 have been pre-approved for use with all MHE. These attachments are exempt from the OEM authorization requirement above.

f. The contractor is required to provide all hooks used on cranes, hoists, other machines and rigging gear shall have self-closing latches or the throat opening shall be "moused" (secured with wire, rope, heavy tape, etc.) or otherwise secured to prevent the attached item from coming free of the hook under a slack condition. The following exceptions apply and shall be approved by the contractor's technical organization (i.e. the Japan Construction Information Center Foundation) with PRY33 coordination: items where the hook throat is fully obstructed and not available for manual securing; and lifts where securing the hook throat increases the danger to personnel, such as forge shop, dip tank or underwater work.

g. The contractor is required to have a critical lift plan for each of the following lifts: lifts over 75 percent of the capacity of the crane, hoist or other machine (lifts over 50 percent of the capacity of a barge- mounted mobile crane's hoists) at any radius of lift; lifts involving more than one crane, hoist or other machine; lifts of personnel (lifts of personnel suspended by rigging equipment from multi-purpose machines, MHE or construction equipment shall not be permitted); lifts made in the vicinity of overhead power lines (see subparagraph (7); erection of cranes; lifts of submerged or partially submerged objects (see exceptions in paragraph 10.4.1.e); lifts involving binding conditions; lifts of hazardous materials (see exceptions in paragraph 10.4.1.a); and lifts involving non-routine rigging or operation, sensitive equipment or unusual safety risks. The plan shall include the following as applicable:

- (1) The size and weight of the load to be lifted, including crane (or other machine) equipment and rigging equipment that add to the weight. The OEM's maximum load capacities for the entire range of the lift shall also be provided.
- (2) The lift geometry, including the crane (or other machine) position, boom length and angle, height of lift and radius for the entire range of the lift. Applies to both single and multiple-crane/machine lifts.
- (3) A rigging plan, showing the lift points, rigging equipment and rigging procedures.
- (4) The environmental conditions under which lift operations are to be stopped.
- (5) For lifts of personnel, the plan shall demonstrate compliance with the requirements of 29 CFR 1926.1431. For Navy activities in foreign countries follow host nation requirements as applicable in lieu of the CFR.
- (6) For barge mounted mobile cranes, barge stability calculations identifying crane placement/footprint; barge list and trim based on anticipated loading; and load charts based on calculated list and trim specific to the barge the crane is mounted on. The amount of list and trim shall be within the crane OEM's requirements.

(7) For lifts in the vicinity of overhead power lines (i.e., if any part of the crane or other machine, including the fully extended boom of a telescoping boom crane or machine or the load could approach the distances noted in figure 10-3 during a proposed operation), the plan shall demonstrate compliance with 29 CFR 1926.1408-1411. For Navy activities in foreign countries follow host nation requirements as applicable in lieu of the CFR.

h. The contractor shall notify the PRY33 office as soon as practical, but not later than four hours, after any WHE accident is identified in NAVFAC P-307 section 12. The contractor is required to secure the accident site and protect evidence until released by the PRY33 office. The contractor shall conduct an investigation to establish the root cause(s) of any WHE accident, near miss or unplanned occurrence. Crane operations shall not proceed until the cause is determined and corrective actions have been implemented to the satisfaction of PRY33 office and/or the contracting officer. The contractor shall certify (appendix P, figure P-1) that the operators, riggers and company officials are aware of the actions required in the event of an accident as specified in the contract.

i. The contractor shall provide a report for an accident or near miss within 30 days to the BSV&E office and the contracting officer using the appropriate form provided in section 12 consisting of a summary of circumstances, an explanation of causes(s), photographs (if available) and corrective actions taken. These notifications and reporting requirements are in addition to those promulgated by OPNAVINST 5100.23 and related command instructions.

j. The contractor shall certify (appendix P, figure P-1) that signal persons employed in construction work are qualified in accordance with 29 CFR 1926.1428. For Navy activities in foreign countries follow host nation requirements as applicable in lieu of the CFR.

k. The contractor shall certify (appendix P, figure P-1) that the riggers are qualified to perform the work by either signing a statement of compliance, providing proof of successful completion of a rigging apprenticeship by a union or other organization providing apprenticeship training or proof of successful completion of training courses from a recognized source such as a trade union, a government agency or an organization that tests and qualifies riggers.

l. The following additional documentation is required for contracts involving tower cranes:

- (1) Foundation design and requirements.
- (2) Installation instructions.
- (3) Assembly and disassembly instructions including climbing/jumping instructions if applicable.
- (4) Operating manual, limitations and precautions.
- (5) Periodic inspection and maintenance requirements. For tower cranes at Navy activities in foreign countries, the tower cranes shall comply with the appropriate host nation safety standards and industry consensus safety standards (e.g., EN or ISO standards).

m. The following additional requirements apply to contracts involving work on telecommunication towers or with personnel hoists on telecommunication towers:

- (1) Base mounted drum hoists used in communication tower work shall comply with TIA-1019, TIA- 222G, ASME B30.7 and 29 CFR 1926.552 and 29 CFR 1926.553. For Navy activities in foreign countries follow host nation requirements as applicable in lieu of the CFR.
- (2) When used for hoisting personnel, base mounted drum hoists shall comply with OSHA Instruction CPL 02-01-056; National Association of Tower Erectors standard "Base Mounted Hoist Mechanism Design Use Standard for Lifting Personnel While Working on Telecommunication Structures"; ANSI/ASSE A10.22; and AMSE B30.23 (or equivalent host nation safety standards for Navy activities in foreign countries).
- (3) The use of a pickup truck or any other equipment besides a base mounted drum hoist for hoisting materials and/or personnel is prohibited.
- (4) Rough-terrain forklifts, bulldozers and similar equipment may be utilized for towing and anchorage purposes of guys. The use of such equipment for trolley/tag and load lines is prohibited, with the exception of using construction equipment for the sole purpose of anchorage that will not be moved during operations.
- (5) Rigging gear utilized in communication tower work shall comply with the applicable ASME/OSHA standards. Operator, signal person and rigger qualifications shall be in accordance with OSHA standards and this section. For Navy activities in foreign countries, follow host nation requirements as applicable in lieu of the CFR or ASME standards.

n. For construction contracts, follow the Unified Facilities Guide Specification UFGS-01 35 26 and U.S. Army Corps of Engineers EM-385-1-1 in lieu of paragraphs 11.1.a through 11.1.g, 11.1.j through 11.1.m and appendix P, figures P-1 and P-2.

11.2 Contracting Officer Responsibilities

- a. The contracting officer will rely on PRY33 office technical expertise for oversight of all contractor-owned crane and rigging operations. Additionally, the PRY33 office to provide oversight of contractor accident investigations and corrective actions. The degree of oversight shall be based upon the risk to personnel and property; however, oversight shall be performed at least once and the minimum periodicity shall be not more than every 30 days. When critical lifts are involved, oversight periodicity shall be not more than every 14 days. Appendix P, figure P-2, provides a checklist that shall be used during oversight of contractor crane and rigging operations. Copies of appendix P, figure P-2, shall be kept on file for one year. Personnel performing oversight shall complete the Contractor Crane Awareness training course (see section 7) or the NAVFAC 40-hr Contract Hazard Awareness Training Course.
- b. The PRY33 office will notify the contracting officer via email of any WHE or crane accident upon notification by the contractor. Additionally, the PRY33 office will consolidate the required documents and reports for the contracting officer concurrence and submission to the Navy Crane Center. Upon receipt of required reporting documents from the PRY33 office, the contracting officer shall notify the Navy Crane Center, by e-mail (m_nfsh_ncc_accident@navy.mil) of an accident involving a fatality, in-patient hospitalization, overturned crane, collapsed boom or any other major damage to the crane or adjacent property as soon as possible when notified by the contractor. For all other accidents, notify the Navy Crane Center as soon as practical but no later than three working days after the accident.
- c. The PRY33 office will provide the contracting officer a copy of every accident and near miss report, regardless of severity, upon receipt from the contractor. These requirements are in addition to any notification and reporting requirements promulgated in OPNAVINST 5100.23 and command instructions. Upon receipt of required documents from the PRY33 office, the contracting officer shall sign all crane and rigging accident and near miss reports to indicate that they are satisfied that the contractor's investigation and corrective action are sufficient.
- d. For construction contracts, the forms in U.S. Army Corps of Engineers EM-385-1-1 are acceptable in lieu of paragraph appendix P, figure P-2.

11.3 Host Activity Responsibilities. The host activity shall ensure that contracts contain the above requirements, concur with the contracting officer's oversight plan, ensure that the oversight plan is being carried out and provide oversight of contractor accident and near miss investigations and corrective actions.

11.4 Other non-Navy-owned cranes and rigging equipment at Naval Activities.

11.4.1 Rented or leased cranes or other WHE Operated by Navy or Base Operation Support (BOS) contractors and cranes and rigging equipment owned and operated by BOS contractors and by contractors engaged in NAVSEA OP-5 operations in the United States and its territories. Any rented or leased cranes shall be inspected, load tested and certified to the requirements of section 4 prior to use (except for appendix E hook NDT requirements). Other WHE shall be inspected, tested and marked in accordance with section 14 requirements. For third party certified mobile cranes that cannot be load tested to the specified overload tests of this publication due to OEM restrictions or designs that prevent periodic overload tests, the cranes shall be down rated to 90 percent of the OEM's rated capacity (80 percent for non-mobile cranes) and tested to the requirements of this publication. For long term-leases (over 4 months) and for BOS contractor owned cranes, the maintenance and inspection requirements of section 3 and appendix E hook NDT requirements shall also apply. Additionally, an equipment history file in accordance with section 5, containing those documents required by sections 3 and 4 and their applicable appendices, shall be maintained on each crane. These history files shall be retained for one year after the end of the lease (seven years if the crane is involved in a crane or rigging accident). These requirements shall be included in applicable contracts. See paragraph 4.8 for third party certification requirements. Crane operators shall be licensed /qualified in accordance with the requirements of section 8 (this includes BOS contractor personnel). Crane operations and accident reporting shall be in accordance with sections 9, 10, and 12 (BOS contractor crane and rigging accidents shall be treated and reported as Navy crane and rigging accidents). Rigging equipment and usage practices shall be in accordance with section 14.

C-7.0 The following NAVSUP local text is hereby made part of the statement of work/performance work statement:

Contractor Unclassified Access to Federally Controlled Facilities, Sensitive Information, Information Technology (IT) Systems or Protected Health Information

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense, the Military Departments, the Office of the Chairman of the Joint

Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy Command under this contract is required to obtain a Department of Defense Common Access Card (DoD CAC). Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Definition. As used in this clause - Military installation means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department, or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense (see 10 U.S.C. 2801(c)(4)).

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager upon arrival to the Command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Training. Contractor employees who require routine physical access to a Federally controlled facility or military installation shall complete "Level I Antiterrorism Awareness Training" prior to gaining access to a facility and annually thereafter in accordance with DoDI O-2000.16 Vol. 1. In accordance with Department of Defense Instruction O-2000.16 Volume 1, DoD Antiterrorism (AT) Program Implementation: DoD AT Standards, Level I Antiterrorism Awareness Training shall be completed by:

1. Completion of "Level I Antiterrorism Awareness Training" available at <https://jkodirect.jten.mil/pdf/at1/launch.html>; or
2. Under the instruction of a qualified Level I Antiterrorism Awareness instructor; or
3. By providing a training certificate for "Level I Antiterrorism Awareness Training" training showing completion within the last calendar year.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, prior to being granted access to a federally controlled facility or military installation.

Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts, including subcontracts for commercial items, when subcontractor performance requires routine physical access to a Federally-controlled facility or military installation.

OPERATION SECURITY (OPSEC)

It is DoD policy according to DoD Directive 5205.02E, "DoD Operations Security (OPSEC) Program," June 20, 2012, as amended to establish and maintain OPSEC programs to ensure national security-related missions and functions are protected.

Training: Contractor employees shall comply with all DoD OPSEC requirements and complete "OPSEC Awareness for Military Members, DoD Employees and Contractor" training within 30 days of onboarding the contract and annual refresher training thereafter. Training shall be completed through a DoD sponsored and certified computer or web-based learning instruction available at <https://securityawareness.usalearning.gov/opsec/index.htm>.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after training is completed by all employees and subcontractor personnel.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance of the performance start date.

Definition of "productive":

- a. OF-306 signed by contractor employee
- b. FD-258 Fingerprint Card (Contingent upon availability of electronic fingerprinting submission)
- c. Completed EQIP (Electronic Investigation)
- d. All contractor employees with need for a Common Access Card (CAC) must have an active Defense Information System for Security (DISS) profile
- e. Common Access Card (CAC)
- f. DISS Visit Request submitted (Contingent upon classification of work being performed, Confidential, Secret, Top Secret)

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services and no reimbursement will be paid by the government for efforts expended during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEMS

In accordance with DON CIO Memorandum (IT LEVEL DESIGNATION ON DD FORM 2875 SYSTEM AUTHORIZATION ACCESS REQUEST) 08 September 2020, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as Privileged, Enhanced, or Authorized users. All user level accesses may include positions which require access to Controlled Unclassified Information (CUI). CUI includes sensitive information protected under the Privacy Act, to include Protected Health Information (PHI). IT System levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged access, (when specified by the terms of the contract) require a Tier 5 (T5) or T5R equivalent investigation, which is a higher level investigation than the Tier 3 (T3) and T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Contractors requiring Enhanced access, (when specified by the terms of the contract) require a T3, T3R, or equivalent investigation, which is a higher level investigation than the Tier 1 (T1) described below. Due to the enhanced system access, an investigation suitable for Moderate Risk national security positions is required.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy Command's CSM and ISSM/IAM upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy Information Technology resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the COR shall sign the SAAR-N as the "supervisor".

The SAAR-N shall be forwarded to the CSM upon contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all contractor employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The Contractor's Security Representative shall contact the Command Security Manager for guidance when reinvestigations are required.

INTERIM ACCESS

The Command's Security Manager may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

ACCESS TO CONTROLLED UNCLASSIFIED INFORMATION

Safeguarding sensitive unclassified information is critical to achieve NAVSUP Modernization efforts and deliver cutting-edge and uncompromised capabilities. The Secretary of Defense's operations security (OPSEC) campaign plan stresses the importance of protecting controlled unclassified information (CUI). CUI encompasses OPSEC, critical technology, intelligence, and personally identifiable information that, if not properly identified, marked, and controlled, could impair NAVSUP's ability to conduct its mission. Contractor employees with access to Controlled Unclassified Information (CUI) shall comply with DoDI 5200.48 - Controlled Unclassified Information (CUI) and complete DoD approved initial and annual refresher CUI training.

- a. Whenever Government provides CUI to, or CUI is generated by, non-DoD entities, all CUI records must be handled as required by the approved mandatory disposition authority.

- b. All CUI records must follow the approved mandatory disposition authority whenever the Government provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and the DoDI 5200.48.
- c. Contractor employees shall monitor CUI aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information
- d. Contractor employees shall submit unclassified government information for review and approval for release in accordance with the Standard DoD Component Processes, DoDI 5230.09, and DoDM 5205.07, Volume 1.

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the Contractor's Security Representative. Within three work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the Contractor's Security Representative. The Contractor's Security Representative shall be the primary point of contact on any security matter. The Contractor's Security Representative shall not be replaced or removed without prior notice to the Contracting Officer and Command Security Manager.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. If the Security Office validates the contractor's position is Non-Critical Sensitive or if the IT system user level is determined to be Enhanced, at a minimum, each contractor employee must be a US citizen and have a favorably completed T3, T3R, or equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or Enhanced position. The investigation consists of a standard National Agency Check and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or Enhanced position is required to complete:

- SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)
- Two FD-258 Applicant Fingerprint Cards or electronic fingerprint submission (preferred))
- Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than ten (10) years) throughout the contract performance period. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's ISSM/IAM. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the CSM upon the contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential or provide the required documentation shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM. Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

For classified contracts, if the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Access Request (VAR) via the Defense Information Security System (DISS). If the contractor employee does not have a current favorably adjudicated investigation, the contractor shall submit the Visit Access Request in DISS until the contractor employee has at a minimum an interim clearance. If the contract only requires access to unclassified information, even if the contractor takes a DISS "owning" role over the contractor employee, the Navy Command will also take a DISS "owning" role over the contractor employee during the hiring process and for the duration of assignment under that contract. If the contract requires access to classified information, the contractor's Facility Security Office (FSO) will take a DISS "ownership" role and the Navy command will take a DISS "servicing" role during the hiring process and the duration of assignment under that contract. All VARs requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc.) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

- Must be either a U.S. citizen or a U.S. permanent resident with a minimum of 3 years of legal residency in the United States (as required by The Deputy Secretary of Defense DTM 08-006 or its subsequent DoD instruction) and
- Must have a favorably completed National Agency Check with Written Inquiries (NACI) or T1 investigation equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the Contractor's Security Representative must submit for all employees each of the following:

- SF-85 Questionnaire for Non-Sensitive Positions
- Two FD-258 Applicant Fingerprint Cards (or the preferred method electronic fingerprint submission)
- Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably completed National Agency Check with Written Inquiries (NACI) or T1 equivalent investigation, or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM

Failure to provide the required documentation at least 30 days prior to the individual's start date may result in delaying the individual's start date.

EXPEDITING CONTRACT CLOSEOUT

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.